

#	Case Name	Tentative
50	Bello v. Carmax Auto Superstores, Inc., et al. 30-2023-01332273	Defendants Ruben Valdivia, Jr. and Carmax Auto Superstores, Inc.'s motion for an order compelling Plaintiff Marywilann Bello's appearance at a neuropsychological examination, is granted. A court order is required to obtain discovery by means of a mental examination. (Code Civ. Proc., § 2032.310, subd. (a).) A motion to obtain discovery by means of a mental examination must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination . . . and be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2032.310, subd. (b).) The moving party must show good cause for the mental examination. (Code Civ. Proc., § 2032.320, subd. (a).) Plaintiff agrees to appear and has no objection to the date, time, location, doctor, testing, or any part of the notice of examination. She does not dispute that there is good cause for a neuropsychological examination. She asks that Dr. Boone be required to turn over testing materials and raw data to Plaintiff's counsel, rather than to Plaintiff's retained, licensed psychologist expert, as provided in the notice of independent medical examination. (Opp., at pp. 5-9; see Waghalter Decl., Exh. E, at p. 4.) Defendants provide a "Collective Statement of Importance of Protection of Psychological Test Materials," signed under penalty of perjury by 149 neuropsychologists and psychological experts, including Dr. Boone. (Waghalter Decl., Exh. G.) The Collective Statement explains why the testing materials and raw data cannot be provided to non-psychologists and why neuropsychologists must protect the test materials. (Waghalter Decl., Exh. G, at ¶¶ 1-5.) The Collective Statement also sets forth that various governing bodies have adopted formal requirements and issued statements pertaining to the release of test-related materials and advise against the release of test materials to unqualified persons. (Waghalter Decl., Exh. G, at ¶¶ 6-9.) The Collective Statement addresses why protective orders do not sufficiently protect the psychological test materials and do not ensure test security. (Waghalter Decl., Exh. G, at ¶¶ 10-12.) The Collective Statement reasons that there is no benefit to turning over the protected test data to counsel because counsel do not have the professional training and experience to evaluate, by viewing the raw data, as to whether the neuropsychologist administered, scored, or interpreted the tests correctly. Only a psychologist has the ability to make those determinations. (Waghalter Decl., Exh. G, at ¶ 13.) The Collective Statement concludes:

		14. In summary, allowing non-psychologists to receive protected psychological test materials, including examinee's specific responses, test questions, and test stimuli, poses a serious threat of widespread social harm by compromising test security. 15. I would not agree to releasing protected test information that would jeopardize future use of tests to a non-psychologist, including attorneys, even under a protective order. If this stipulation cannot be met, I would recuse myself from a case. (Waghalter, Decl., Exh. G, at p. 8.) <i>In Randy's Trucking, Inc. v. Superior Court of Kern County</i> (2023) 91 Cal.App.5th 818, the court recognized there are concerns that a protective order is insufficient to protect test security and that no neuropsychological or psychological expert will comply with an order to turn over testing material and raw data to a plaintiff's counsel. The court pointed out that the matter was procedurally before that court on a petition for writ of mandate to simply determine whether the trial court had abused its discretion based on the rules of evidence. (<i>Id.</i> at p. 848.) Here, the Consolidated Statement addresses aspects that were not fully addressed in <i>Randy's Trucking, Inc. v. Superior Court of Kern County</i>. The court declines to exercise its discretion to order Dr. Boone to turn over testing materials and raw data to Plaintiff's counsel. Plaintiff is therefore ordered to appear for her neuropsychological examination with Dr. Kyle Boone, Ph.D. on April 23, 2025, at 9:30 a.m., located at 24564 Hawthorne Blvd., Suite 208, Torrance, CA 90505, unless otherwise agreed. Plaintiff has the right to audio record the mental examination. Dr. Boone also has a right to audio record the mental examination. (Code Civ. Proc., § 2032.530.) The audio recordings shall be subject to a protective order. Defendant shall promptly submit to the court and serve on all parties a proposed protective order as to the audio recording of the mental examination for the court's signature. Dr. Boone is to turn over raw data to Plaintiff's retained, licensed psychologist expert. The court declines to award any sanctions. Defendants shall give notice of the ruling.
51	Citizens Business Bank v. Sovereign Arts and Metal Finishing LLC, et al. 30-2024-01399265	The court grants Defendants Michael Johnson and Sovereign Arts and Metal Finishing LLC's motion to vacate the default and default judgment entered against them on Plaintiff Citizens Business Bank's Complaint, to recall and quash the writ of execution, and to order the return property levied upon.